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February 26, 2025

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 652

By: Paxton of the Senate

and

Osburn of the House

An Act relating to administration of elections; amending 26 O.S. 2021, Section 3-101, as amended by Section 2, Chapter 329, O.S.L. 2023 (26 O.S. Supp. 2024, Section 3-101), which relates to scheduling of elections; modifying permissible dates for certain elections; authorizing special elections called for certain purposes to be held on certain dates; modifying deadline for certain filing period; specifying applicability of provisions; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 26 O.S. 2021, Section 3-101, as amended by Section 2, Chapter 329, O.S.L. 2023 (26 O.S. Supp. 2024, Section 3-101), is amended to read as follows:

Section 3-101. A. No election required to be conducted by any county election board shall be scheduled for a day other than Tuesday.

B. Except as otherwise provided by law, no regular or special election ~~to fill an elective office~~ for any purpose shall be held by

any county, school district, technology center school district, municipality, fire protection district, or other political subdivision authorized to call elections except as follows:

1. The second Tuesday of February in any year;

2. The first Tuesday of April in any year;

~~3. The date of any regularly scheduled statewide state or federal election in an even-numbered year;~~

~~4. The second third Tuesday of September June in an odd-numbered any year;~~

~~5. 4. The second fourth Tuesday of November August in an odd-numbered any year; and~~

~~6. 5. The second first Tuesday after the first Monday of June of an odd-numbered November in any year for a special election to fill a vacancy.~~

C. ~~Except as otherwise provided by law or by Section 1 of this act, no election for any purpose other than to fill an elective office shall be held by any county, school district, technology center school district, municipality, fire protection district or other political subdivision authorized to call elections except on:~~

~~1. The second Tuesday of January, February, May, June, July, August, September, October and November and the first Tuesday in March and April in odd-numbered years; provided, a municipality with a population in excess of two hundred fifty thousand (250,000) persons, according to the most recent Federal Decennial Census, may~~

1 ~~also hold an election on the second Tuesday of December in odd-~~
2 ~~numbered years; and~~

3 ~~2. The second Tuesday of January and February, the first~~
4 ~~Tuesday in March and April, the third Tuesday in June, the fourth~~
5 ~~Tuesday in August, and the first Tuesday after the first Monday in~~
6 ~~November of any even-numbered year.~~

7 ~~D.~~ In the event that a regular or special election date occurs
8 on an official state holiday, the election shall be scheduled for
9 the next following Tuesday. In the event that any day of a
10 candidate filing period occurs on a Saturday, Sunday, or any
11 official state holiday, that day of the filing period shall be
12 scheduled for the next business day.

13 D. For a special election called by the Governor as authorized
14 by law, the Governor shall be limited to the dates stated in
15 subsection B of this section. Provided, however, if a vacancy has
16 occurred in the office of United States Representative, State
17 Senator, or State Representative, or in the event of a declared
18 national or state emergency that requires a special election, the
19 Governor may also call a special election as authorized by law on
20 the following dates:

21 1. The second Tuesday of January in any year;

22 2. The first Tuesday of March in any year;

23 3. The first Tuesday of May in an odd-numbered year;

24 4. The second Tuesday of July in an odd-numbered year;

1 5. The second Tuesday of September in an odd-numbered year;

2 6. The first Tuesday of October in an odd-numbered year; and

3 7. The first Tuesday of December in any year.

4 E. Notwithstanding any other provision of law or any provision
5 of a municipal charter, any municipality, school district,
6 technology center district, county, rural fire protection district,
7 or any other entity seeking to hold a regular or special election to
8 be conducted by a county election board on the same date as a
9 regular or special federal or state election, shall file the
10 resolution calling for the election with the county election board
11 secretary no later than seventy-five (75) days prior to the election
12 date. A candidate filing period of three (3) days, if so required
13 by the resolution, shall begin no later than ten (10) days following
14 the deadline to file the resolution with the secretary of the county
15 election board; provided, the filing period for such municipal
16 office may be scheduled on the same dates as the filing period for
17 state or federal office to be filled at such election.

18 F. Any school district, technology center district,
19 municipality, including any municipality governed by charter, rural
20 fire protection district, or any other entity seeking to hold a
21 special election for the purpose of filling a vacancy shall schedule
22 a candidate filing period of three (3) days to begin not more than
23 ~~twenty (20)~~ ten (10) days following the date the resolution calling
24

1 the election is required to be filed with the secretary of the
2 county election board.

3 G. The provisions of this section shall apply to elections held
4 after January 1, 2026.

5 SECTION 2. This act shall become effective November 1, 2025.

6 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
7 February 26, 2025 - DO PASS
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